

23PSCV03570 23PSCV03570

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C09%2F02%2F2026

Source SHA-256: a63ca4fea317a09f3d4d287f3256a9815db1821d4590b789fdd9fd2d366c6c50

Case Number: 23PSCV03570 Hearing Date: September 2, 2026 Dept: 6

CASE

NAME: Serrato

v. City of La Puente, et al.

Defendant

Merritt's Garden Center's Motion for Summary Judgment

TENTATIVE

RULING

The Court GRANTS defendant Merritt's Garden Center's Motion for Summary Judgment.

Defendant Merrit's Garden Center is

ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a slip-and-fall action. On November 15, 2023, plaintiff Edward Serrato (Plaintiff) filed this action against defendants the City of La Puente and Merritt's Garden Center (the latter initially as Doe 1). Plaintiff asserts claims for premises liability, general negligence, and dangerous condition of public property.

On May 21, 2026, Merritt's Garden Center (Defendant) filed the instant motion for summary judgment or in the alternative, summary adjudication. On August 10, 2026, Plaintiff opposed the motion. On August 19,

2026, Defendant replied.

LEGAL STANDARD

The

purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. [Citations.]” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, italics in original and quoting Code Civ. Proc., § 437c, subd. (c).) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings. [Citations.]” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, brackets and internal quotation marks omitted.)

“On

a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established...” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.)

Once

the defendant has met that burden, the burden shifts to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of

material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Ibid.; see also Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Courts

“liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

EVIDENTIARY OBJECTIONS

The Court OVERRULES

Defendant’s objections to evidence in their entirety.

DISCUSSION

Summary of Relevant Material Facts

The operative facts for purposes of this motion are largely undisputed:

Defendant maintains a rear parking lot for its store across a public alleyway from the store’s rear entrance. (DSMF 2-5.) Defendant’s customers who park in the rear parking lot must cross the alleyway to enter Defendant’s store. (PSMF 4.) The alleyway is owned by defendant the City of La Puente. (DSMF 2-5, 7 [undisputed].) The City of La Puente “was responsible for the maintenance and upkeep of the alleyway at the time of the incident.” (DSMF 5 [undisputed].) Defendant tripped and fell in a pothole in the alleyway. (PSMF 6 [undisputed].) The pothole is located between Defendant’s rear parking lot and the entrance to Defendant’s store. (Ibid.) Plaintiff sued both the City and Defendant, contending the pothole was a dangerous condition for which both are responsible.

The Undisputed Facts Demonstrate Defendant is Not Liable

“To

succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3)

the breach proximately or legally caused (4) the plaintiff's damages or injuries. [Citation.]" (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.) "The elements of a cause of action for premises liability are the same as those for negligence. Accordingly, the plaintiff must prove, a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.)

The

Court finds Defendant met its initial burden of establishing the absence of a triable issue of material fact. Plaintiff cannot establish that Defendant owed him a legal duty of care. The undisputed material facts establish that the alleyway was owned, controlled and maintained by the City of La Puente. (UMF Nos. 3-6.) Defendant did not own, control or maintain the alleyway or the pothole and did not contribute to the dangerous condition. (UMF Nos. 3-6, 8-10.) The burden now shifts to Plaintiff to establish that a triable issue of fact exists. Plaintiff does not submit any evidence to create a triable issue of fact.

In

opposition, Plaintiff relies heavily on Alcaraz v. Vece (1997) 14 Cal.4th 1149 (Alcaraz). Alcaraz is not nearly on point. In Alcaraz, the plaintiff incurred injuries on a narrow strip of publicly-owned lawn between a sidewalk and the defendant's private property. (Id., at p. 1153.) The Court of Appeal and Supreme Court found there was a triable issue whether the defendant "maintained the entire lawn from the front of the apartment building to the sidewalk"; indeed, after the plaintiff's injury "defendants constructed a fence that ... enclosed the entire lawn", including the publicly-owned portion. (Id., at p. 1154.) There is no equivalent evidence here that Defendant maintained or controlled the alleyway or treated it as part of Defendant's private property.

Plaintiff

also contends that Defendant inspected its parking lot monthly but did nothing to the alleyway and failed to warn of the dangerous condition. However, Defendant did not own or control the alleyway so it had no obligation or duty to repair it. Moreover, unlike in Johnston v. De La Guerra Properties, Inc. (1946) 28 Cal.2d 394, 401, there is no evidence in the present case that Defendant "assumed some responsibility for, and exercised control over" the alleyway, thus there is no duty to warn customers of a dangerous condition. (See Seaber v. Hotel Del Coronado (1991) 1 Cal.App.4th 481, 492 ["Consequently,

we agree with the trial court that because the Hotel lacked effective control over the crosswalk, it cannot be shackled with a duty to warn pedestrians of the dangerous risk the crosswalk posed."])

Accordingly,
the Court finds there is no triable issue of material fact and Defendant is entitled to judgment as a matter of law.

CONCLUSION

The Court GRANTS defendant Merrit's Garden Center's motion for summary judgment.

Defendant is ordered to give notice of the Court's ruling within five calendar days of this order.